If a man hath iſſue two Daughters and grant a Rent charge out of his land to one of them and dyeth the Rent ſhall be apportioned, and if the Grantee in this caſe enfeoffeth another of her part of the land, yet the moity of the Rent remaineth iſſuing out of her ſiſters part, becauſe the part of the Grantee in the land by the diſcent was diſcharged of the Rent. But in all theſe caſes where the Rent charge is apportioned by act in Law, yet the writ of Annuity lyeth, for if the Grantee ſhould bring a writ of Annuity he muſt ground it vpon the grant by Deede, and then muſt he as it hath beene ſaid bring it for the whole. *9. Aſſ. 22.* *5.R.2.Annuity 21.*

Annua nec debitum Iudex non ſeperat ipſum.

Alſo in reſpect of the realty the Rent is apportioned, but the perſonalty is indiuiſible, and by act in Law ſhall not be deuided. If Execution be ſued of body and lands vpon a ſtatute Merchant or ſtaple, and after the inheritance of part of thoſe lands diſcend to the Conuſee all the Execution is auoyded, for the dutie is perſonall and cannot be deuided by act in Law. *Pl.Com.72.* *35.H.6. tit. Execut. 21.* *15.E.4.5.*

¶ *Ne vient al fitz perſon fait demeſne mes per diſcent & per courſe del ley.* If the father within age purchaſe part of the land charged, and alieneth within age and dyeth, the ſonne recouereth in a writ of Dum fuit infra ætatem, or entreth: In this caſe the act of Law is mixt with the act of the partie, and yet the Rent ſhall be apportioned, for after the recouery or entry the ſonne hath the land by diſcent.

So it is in caſe the ſonne recouereth part of the land vpon an alienation by his father, Dum non fuit compos mentis, the Rent ſhal be apportioned for the cauſe aforeſaid.

A man ſeiſed of lands in fee taketh wife, and maketh a Feoffment in fee, the Feoffee grants a Rent charge of x pound out of the land to the Feoffor and his wife, and to the heires of the huſband, the huſband dieth, the wife recouereth the moity for her Dower by the cuſtome, the Rent charge ſhalbe apportioned, and ſhe may diſtreyne for fiue pound which is the moity of the Rent. In which caſe two notable things are to be obſerued. Firſt, albeit the Dower bee by relation or fiction of Law aboue the Rent, yet when the wife recouereth her Dower, ſhe ſhall not haue her entire Rent out of the reſidue, for a relation or fiction of Law ſhall neuer worke a wrong or charge to a third perſon, but In fictione iuris ſemper eſt Equitas. Second.y, that albeit her owne act doe concurre with the act in Law, yet the Rent ſhalbe apportioned. *5.E.2.Auowry, 206.* *Lib.3.fo.29. in Butler et Bakers caſe.*

Section 225.

¶ Item, ſi ſoit ſñr ⁊ tenant, ⁊ le tenãt tient de ſ̃ Seignior per fealtie ⁊ certaine rent, ⁊ le ſ̃r grant le rent p ſ̃ fait a vn auter, &c. reſeruant a luy le fealty, ⁊ le tenant atturna al grantee de l' rent, ore tiel rent eſt rent ſeck a le grantee, pur ceo que les tenements ne ſont tenus del grantee de le rent, mes ſont tenus del Seignior q̃ reſerue a luy fealtie.

ALſo if there bee Lord and tenant, and the tenant holds of his Lord by fealtie and certaine rent, and the Lord grants the rent by his deed to another reſeruing the fealty to himſelfe, and the tenant atturnes to the grantee of the rent, now this rent is rent ſecke to the grantee, becauſe the tenements are not holden of the grantor of the rent, but are holden of the Lord who reſerued to him the fealtie.

¶ *Et le Seignior grãta le rent, &c.* So it is if the Lord releaſe the Rent to the Tenant ſauing the fealty, the Rent is extinct. But if there be Lord and Tenant by Fealty and Rent, and the Lord by his Deed reciting the tenure releaſe all his right in the land ſauing his ſaid Rent, the Seigniorie remaines and hee ſhall haue the Rent as a rent ſeruice, and the fealtie incident to it, for the ſaid Rent is as much to ſay as the Rent ſeruice whereunto fealty is incident. *12.E.4.11. 9.E.3.1.* *40.E.3.22.b. 13.E.3. tit. Releaſes 36.*

And ſo it is if the Lord hath iſſue two daughters and dieth, and vpon partition the fealty is allotted to the one and the Rent to the other, ſhe ſhall haue the Rent as a Rent ſecke. *17.E.3.72.b.*

If there bee Lord of a Mannor and Tenant by fealtie, Suit of Court and Rent, the Lord grant the fealty ſauing to him the ſuite of Court and Rent, the ſauing is good for the Rent but not for the ſuite to Court, becauſe the Grant- *17.E.3.72.b.*